

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



October 30, 2024

The Honorable Kathleen M. Lewis
Judge of the Superior Court
County of San Diego
300 East Olive
Burbank, CA 91502

Re: BRAGGS, CHARLES EDWARD
CDCR No: V61240
Case No: SCD222240
Date of Sentence: June 17, 2010

Dear Honorable Kathleen M. Lewis:

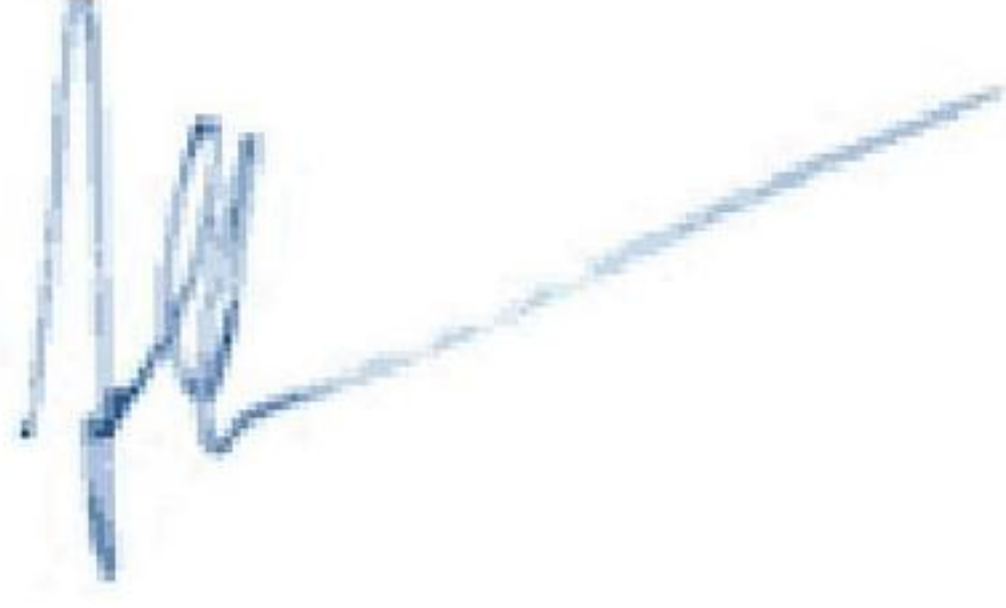
The purpose of this letter is to provide the court with the authority to resentence incarcerated person Charles E. Braggs, V61240, pursuant to Penal Code (PC) Section 1172.1, Subdivision (a)(1), based upon a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recalling a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Incarcerated person Braggs was sentenced on June 17, 2010, pursuant to a conviction via plea agreement and sentenced as a third striker on one count of PC 211, Robbery Second Degree, with two case enhancements of PC 667(a)(1), Prior Felony Conviction of Serious Offense, and two (stayed) case enhancements of PC 667.5(b), Prior Prison Term/Non-Violent New Offense is any Felony. Braggs received a total sentence of 35 years to Life and has a Minimum Eligible Parole Date of December 18, 2034.

The incarcerated person's case factors have been compiled and thoroughly reviewed. After personally reviewing their commitment offense and in-prison conduct, I recommend, the enhancements of PC 667(a)(1), Prior Felony Conviction of a Serious Offense, be reviewed by the court pursuant to PC 1385, and Braggs' sentence be recalled and that they be resented in accordance with PC 1172.1(a)(1).

Sincerely,

The Honorable Kathleen M. Lewis
Page 2

A handwritten signature in blue ink, appearing to read 'Jeff Macomber', with a long horizontal stroke extending to the right.

JEFF MACOMBER
Secretary

Enclosures:
Cumulative Case Summary
Abstract of Judgment
Minute Order
Information Summary

cc: The Honorable Michael T. Smyth, Presiding Judge
San Diego County District Attorney's Office
San Diego County Public Defender's Office